TEMPLATE P56 · MODEL AI CONTRACTUAL CLAUSES

Model AI contractual clauses

Provides starting wording for the sixteen key clauses of document 36, with their requirement by N1–N3 level, an AI annex for existing contracts and an addendum for AI embedded in software already contracted.

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> **Why it matters.** What is not in the contract cannot be enforced: neither that the supplier does not train on the company's data, nor that it gives notice before changing the model, nor that it returns and deletes the data on exit. Document 36 states what each clause must ensure; this template provides starting text for negotiation, prevents every contract from starting from scratch and makes it possible to check at G3, G5 and R6 which clauses are present.

Warning. The texts in this template are **starting texts**. They must be reviewed and adapted by the company's legal advisers to the contract, the applicable law, the jurisdiction and sector regulation

before use. The elements in square brackets are replaced or chosen in each case.

01

Instructions for use

Aspect	Guidance
When it is used	At stage 3 of the supplier lifecycle (36 §5), phases 3–4: when preparing the contract or AI annex for a new supplier; when reviewing existing contracts (section 7); when incorporating embedded AI features in software already contracted (section 8, 36 §8.1 step 5); and on renewal.
Who completes it	Legal and procurement draft and negotiate; the AI Technical Owner validates the technical content (model changes, logs, exit); data protection validates clauses 2 and 3.
Who verifies it	The AI Risk Owner checks that the list in section 3 matches the level; the AI Auditor verifies it at G3 and G5 (Enterprise).
Who decides or approves	According to the level (36 §4.2): N1, AI Product Owner with procurement clearance; N2, AI Sponsor with risk and data protection clearance; N3, AI Committee with clearance from risk, information security, data protection and legal.
Stage or *gate*	G3 (G3.21: clauses set as a contracting requirement) · G4 (G4.22: incorporated into the contract or draft) · G5 (G5.20: contract signed) · R6 (R6.12) · G7 (G7.12: deletion and revocation of access).
Tool	T09 · AI supplier register: the status of the 16 clauses is entered in the *Contract* block (P57 §3.3).
Reference document	Document 36 §6 (clauses), §6.1 (AI Act along the value chain), §6.2 (DORA) and §8 (embedded AI). P14 §5 records the verification.
Lite versus Enterprise	The requirement depends on the supplier's N1–N3 level, not on intensity.

Completion rules:

- **Yes** = must be included · **Rec.** = recommended · **—** = not required (36 §6).
- At N1 many clauses are not negotiable: they are checked in the supplier's standard terms and, if missing, the risk is recorded in P12 together with who accepts it (section 9).
- At N1 the standard terms are reviewed at least against clauses 1 to 4; at N2 an AI annex and a data processing agreement are signed with the clauses marked for N2; at N3 the contract is negotiated with all the clauses (36 §4.2).
- *This document does not constitute legal advice.* References consulted in September 2026; their current validity must be verified.

02

Identification

Field	Content	Guidance
Supplier–service relationship code		PRV-AAAA-NNN (P57).
Supplier		Legal name and country.
Service		
Requirement level		N1 · N2 · N3 (P14 §3).
Critical or important function		Yes · No. If the company is subject to DORA , see section 6.
Instrument		New contract · AI annex to an existing contract · Embedded AI addendum · Renewal.
Contract reference		
Linked initiatives and systems		IA-AAAA-NNN · SIA-AAAA-NNN.
Document version and date		DD-MM-AAAA.

03

Clause map by level and status

Status: **Present · Partial · Absent · Not applicable** (36 §9).

#	Clause	N1	N2	N3	Embedded AI addendum	Status	Observations
1	Use of data for training	Yes	Yes	Yes	Minimum		
2	Confidentiality and data processing	Yes	Yes	Yes	According to level		
3	Location and transfers	Yes	Yes	Yes	Minimum		

#	Clause	N1	N2	N3	Embedded AI addendum	Status	Observations
4	Security	Yes	Yes	Yes	According to level		
5	Sub-processors	Rec.	Yes	Yes	According to level		
6	Intellectual property and outputs	Rec.	Yes	Yes	According to level		
7	Incident notification	Rec.	Yes	Yes	According to level		
8	Model changes	Rec.	Yes	Yes	Minimum		
9	Service levels	—	Yes	Yes	According to level		
Sphere map and ambition levels (10)	Logs and traceability	—	Yes	Yes	According to level		
Maturity model (11)	Audit and access	—	Rec.	Yes	According to level		
Transformation index (12)	AI Act obligations along the value chain	Rec.	Yes	Yes	According to level		
AI thesis, ambition and risk appetite (13)	Transparency on AI features	Rec.	Yes	Yes	Minimum		
Portfolio management (14)	Continuity	—	Rec.	Yes	According to level		
15	Exit and transition	Rec.	Yes	Yes	According to level		
16	Termination	Rec.	Yes	Yes	According to level		
***(illustrative example)* 8**	Model changes	Rec.	Yes	Yes	Minimum	Partial	30 days' notice accepted; the supplier does not allow version pinning. Risk RT-TER-03 in P12.

04

Definitions

For the purposes of the following clauses:

- **Company Data:** any data, document or information that the Company or its users provide to the Supplier or that the Service generates on behalf of the Company, including Inputs and Outputs.
- **Inputs:** prompts, queries, contexts, documents and other content entered into the Service.
- **Outputs:** content, predictions, recommendations or actions generated by the Service.
- **Model:** any AI model, proprietary or third-party, used by the Service.
- **Relevant change:** a change to the version, behaviour or configuration of the Model or the Service that may affect quality, security, compliance or cost; and the deprecation of a Model.
- **AI feature:** functionality of the Service based on a Model.
- **Sub-processor:** a third party engaged by the Supplier to provide the Service or process Company Data.
- **Incident:** an event that affects or may affect the availability, integrity or confidentiality of the Service or of Company Data, or the expected behaviour of the Model.

05

Model clauses

5.1 Clause 1 · Use of data for training

Model text. The Supplier shall not use Company Data, including Inputs and Outputs, to train, fine-tune, evaluate or improve any Model, proprietary or third-party, or for any purpose other than the provision of the Service, unless the Company has given prior, express, written and specific authorisation stating the data, the purpose and the period. The Supplier shall keep any option allowing such use [disabled by default / disabled through a verifiable configuration].

Usage note. Required at N1, N2 and N3. At N1 it is checked in the standard terms and in the environment configuration; the evidence is retained. It controls RT-TER-02.

5.2 Clause 2 · Confidentiality and data processing

Model text. The Supplier shall treat Company Data as confidential information for the term of the contract and [number] years thereafter. Where it processes personal data on behalf of the Company, it shall do so as a processor in accordance with Art. 28 of the GDPR and the data processing agreement

set out in [annex]. The Supplier shall retain Company Data only for [period] or for the time needed to provide the Service, and shall delete them at the end of that period.

Usage note. Required at N1, N2 and N3. Data protection validates the data processing agreement and the retention period.

5.3 Clause 3 · Location and transfers

Model text. The Supplier shall process and store Company Data only in [authorised regions or countries]. Any international transfer shall comply with the safeguards of Chapter V of the GDPR. The Supplier shall notify the Company of any change of location [number] days in advance, and the Company may object or terminate the contract without penalty if the change does not offer equivalent safeguards.

Usage note. Required at N1, N2 and N3; minimum in the embedded AI addendum. It controls RT-TER-04.

5.4 Clause 4 · Security

Model text. The Supplier shall apply the security measures described in [annex of measures], keep the certifications [specify] in force throughout the contract with a scope covering the Service, manage vulnerabilities within the time frames in [annex] and apply protections against AI-specific threats, such as prompt injection, information leakage and model extraction. It shall report without delay any loss or reduction in scope of any certification.

Usage note. Required at N1, N2 and N3. At N2 and N3, information security checks the annex against the applicable SEG and AG controls of document 35.

5.5 Clause 5 · Sub-processors

Model text. The Supplier shall make available to the Company an up-to-date list of Sub-processors with their location and function. [It shall not engage new Sub-processors without the Company's prior written authorisation / It shall notify the Company of any change [number] days in advance, and the Company may object on reasoned grounds]. The Supplier shall impose on each Sub-processor obligations equivalent to those of this contract and shall be liable for their compliance.

Usage note. Recommended at N1; required at N2 and N3. For DORA , see section 6.

5.6 Clause 6 · Intellectual property and outputs

Model text. The Outputs [belong to the Company / may be used by the Company without restriction for its purposes]. Anything developed specifically for the Company shall be its property from creation. The Supplier shall indemnify the Company against third-party claims for infringement of intellectual

or industrial property rights arising from the Model or its training data, [with the following scope and limits].

Usage note. Recommended at N1; required at N2 and N3. Particularly relevant with integrators (ownership of what is built).

5.7 Clause 7 · Incident notification

Model text. The Supplier shall notify the Company of any Incident within a maximum of [number] hours of its detection, with at least: description, systems and data affected, known cause, measures taken and contact person. It shall cooperate in the investigation and provide in good time the information the Company needs for its regulatory notifications.

Usage note. Recommended at N1; required at N2 and N3. The time limit must be compatible with the company's own obligations (document 37); at N3, indicatively 24 hours or less (36 §4.2).

5.8 Clause 8 · Model changes

Model text. The Supplier shall give notice of any Relevant change at least [number] days in advance, with sufficient information for the Company to evaluate its effect before it takes place. The Company may keep the version in use pinned for [period] from the notice. The deprecation of a Model shall be notified [number] months in advance. If the change affects compliance or the agreed performance, the Company may terminate the contract without penalty.

Usage note. Recommended at N1; required at N2 and N3; minimum in the embedded AI addendum. It controls RT-TER-03.

5.9 Clause 9 · Service levels

Model text. The Supplier shall provide the Service with the availability, latency and support levels set out in [service level annex], measured according to the method described therein. Failure to meet them shall give rise to the penalties in [annex], without prejudice to other rights.

Usage note. Not required at N1; required at N2 and N3.

5.10 Clause 10 · Logs and traceability

Model text. The Supplier shall generate and retain for [period] the logs needed for oversight, incident investigation and the Company's regulatory obligations, and shall give the Company access to them in [format and time frame].

Usage note. Not required at N1; required at N2 and N3. The retention period is aligned with the architecture record (P15).

5.11 Clause 11 · Audit and access

Model text. The Company, the auditors it designates and the competent supervisors may audit, inspect and access the information, premises and systems related to the Service, [with [number] days' notice except where required by the supervisor]. [At N2: the Supplier shall provide annual independent reports covering the Service.]

Usage note. Not required at N1; recommended at N2 (annual independent reports); required at N3 (right of audit, directly or through a designated third party).

5.12 Clause 12 · AI Act obligations along the value chain

Model text. The parties declare that, in respect of the Service, the Supplier acts as [provider of the system / provider of a general-purpose AI model / other] and the Company as [deployer / other]. The Supplier shall deliver the technical documentation and instructions for use, and shall report on the capabilities and limitations of the system, so that the Company can meet its obligations. It shall cooperate on human oversight, log retention, post-market monitoring and the handling of serious incidents. [Where the Supplier supplies tools, services, components or processes to a high-risk system of the Company, the parties sign the written agreement under Art. 25(4) of the AI Act as [annex], with the necessary information, capabilities, technical access and assistance.]

Usage note. Recommended at N1; required at N2 and N3. Apply the relevant situation in 36 §6.1: deployment of a provider's high-risk system (Art. 26); the company becomes a provider (Art. 25(1) and 25(2)); third-party components for the company's own high-risk system (Art. 25(4)); integration of a general-purpose AI model (Art. 53). Long-term contracts signed before 2 December 2027 **should** already include it.

5.13 Clause 13 · Transparency on AI features

Model text. The Supplier shall notify the Company at least [number] days in advance of any new AI feature in the Service. The Company may keep each new AI feature disabled until it has assessed it, at no additional cost and without losing other functionality.

Usage note. Recommended at N1; required at N2 and N3; minimum in the embedded AI addendum. It controls RT-TER-06.

5.14 Clause 14 · Continuity

Model text. The Supplier shall maintain continuity and recovery plans for the Service, test them at least [frequency] and inform the Company of their results and of the corrective measures.

Usage note. Not required at N1; recommended at N2; required at N3.

5.15 Clause 15 · Exit and transition

Model text. On termination of the contract for any reason, the Supplier shall: a) maintain the Service for a transition period of [number] months; b) provide reasonable assistance to migrate to the Company or to a new supplier; c) deliver the Company's data, configurations, prompts and logs in usable formats [specify formats]; d) thereafter delete Company Data, including data held by its Sub-processors, and deliver a deletion certificate within [number] days; e) revoke all access.

Usage note. Recommended at N1 (at N1 guaranteed data export is sufficient); required at N2 and N3. The exit plan and the deletion certificate are documented in P57 §6 and §8. For DORA, see section 6.

5.16 Clause 16 · Termination

Model text. The Company may terminate the contract, without penalty, for: a) serious breach by the Supplier; b) a regulatory change that prevents the provision of the Service or makes it unlawful; c) a security breach; d) a change of control of the Supplier; e) an instruction from a competent supervisor. Termination triggers clause 15.

Usage note. Recommended at N1; required at N2 and N3.

06

Entities subject to DORA

Only if the company is a financial entity subject to DORA and the AI service is an ICT service provided by a third party (36 §6.2). If it is not, these requirements **may** be used as a good practice reference for N3 services.

Requirement (36 §6.2)	Reference	Where it is covered	Checked
Minimum contractual clauses for all ICT services	Art. 30(2)	Section 5; legal review of the full contract.	Yes · No
Enhanced clauses for critical or important functions	Art. 30(3)	Every N3 service is reviewed against Art. 30(3).	Yes · No · Not applicable
Exit strategy for services supporting critical or important functions	Art. 28(8)	Clause 15; tested exit plan (P57 §6–7).	Yes · No · Not applicable
Subcontracting chain	Art. 29; Delegated Regulation (EU) 2025/532	Clause 5.	Yes · No · Not applicable
Register of information	Art. 28(3); Implementing Regulation (EU) 2024/2956	T09 feeds the register (P57).	Yes · No

07

AI annex for existing contracts (model)

It is used when a current contract does not include the clauses for the level (36 §4.2: at N2, AI annex). Starting text:

AI annex to contract [reference] between [the Company] and [the Supplier].

1. **Purpose.** This annex supplements the contract with the terms applicable to the use of AI features and Models in the Service.
2. **Definitions.** The definitions in section 4 of this template apply.
3. **Incorporated clauses.** Clauses [list according to the level in section 3: at N2, 1 to 10, 12, 13, 15 and 16, and the recommended ones that are agreed; at N3, all of them] are incorporated.
4. **Precedence.** In the event of conflict with the contract, this annex prevails as regards Company Data, Models and AI features.
5. **Entry into force.** From signature; obligations concerning AI features already enabled shall be met within [period].

08

Embedded AI addendum (model)

It is used with suppliers of software already contracted that incorporate AI features (36 §8.1, step 5). It includes at least clauses 1, 3, 8 and 13, plus those corresponding to the level. Starting text:

AI addendum to contract [reference] between [the Company] and [the Supplier].

1. **Existing AI features.** The Supplier declares in [appendix] the AI features currently included in the software, the data they process, the Models and Model providers they use and where the data are processed (answers to annex A of P55).
2. **Activation status.** AI features that process personal or confidential data shall remain disabled until the Company has assessed and authorised them in writing. [If they cannot be disabled, the Supplier declares this and describes the measures available.]
3. **Incorporated clauses.** Clauses 1 (use of data for training), 3 (location and transfers), 8 (model changes) and 13 (transparency on AI features) are incorporated, together with [others according to the level].
4. **New features.** Any new AI feature is governed by clause 13.

09

Negotiation record and accepted risk

Required clauses that the supplier does not accept or accepts only in part. At N1, if they are missing from the standard terms, the risk is recorded together with who accepts it (36 §6).

#	Clause	Supplier's position	Agreed alternative or compensating measure	Risk in P12	Residual level	Accepted by (P12 §6)	Date
(illustrative example) **11**	Audit and access	Provides only annual independent reports.	Annual third-party report covering the service; supervisor's right of access.	IA-2026-021 · R04	Medium	AI Sponsor with risk clearance	02-10-2026

10

Quality criteria

#	Check	Status
1	The minimum clauses are set as a contracting requirement before G3 (G3.21).	Met · Not met · Not applicable · Pending
2	The required clauses are in the contract or in the draft under negotiation before G4 (G4.22).	
3	The contract is signed with the required clauses before G5 and is recorded in T09 (G5.20).	
4	Each required clause that is absent or partial has a recorded risk and acceptance by the competent body.	
5	Clause 12 applies the correct situation in 36 §6.1.	
6	If DORA applies, the N3 service has been reviewed against Art. 30(3).	
7	The embedded AI addendum includes at least clauses 1, 3, 8 and 13.	
8	Legal advisers have reviewed and adapted the texts.	

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Approval and verification

Function	Role in SEVEN-G	Name and position	Date	Signature or reference
Drafts and negotiates	Legal and procurement			
Validates technical and data content	AI Technical Owner · data protection			
Issues clearance	AI Risk Owner			
Verifies	AI Risk Owner (Lite) · AI Auditor (Enterprise)			
Approves	According to the level (36 §4.2)			

Segregation of duties: whoever negotiates the contract does not verify the clause list; anyone with a conflict of interest with the supplier declares it in P03.

12

Version control

Completed document

Version	Date	Author	Changes

Template

Version	Date	Changes
0.1	19-09-2026	First version. Starting text for the sixteen clauses of 36 §6 with their requirement by level, DORA requirements from 36 §6.2, AI annex for existing contracts and embedded AI addendum (36 §8.1).

External sources cited

Links to the official or primary source, checked before publication. Always verify the version in force on the date of use.

Commission Delegated Regulation (EU) 2025/532 of 24 March 2025 supplementing Regulation (EU) 2022/2554 with regard to regulatory technical standards specifying the elements that a financial entity has to determine and assess when subcontracting ICT services supporting critical or important functions · https://eur-lex.europa.eu/eli/reg_del/2025/532/oj/eng · Comisión Europea · 24-03-2025

Commission Implementing Regulation (EU) 2024/2956 of 29 November 2024 laying down implementing technical standards for the application of Regulation (EU) 2022/2554 with regard to standard templates for the register of information · https://eur-lex.europa.eu/eli/reg_impl/2024/2956/oj/eng · Comisión Europea · 29-11-2024

Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

· https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng · Parlamento Europeo y Consejo de la UE · 27-04-2016

Regulation (EU) 2022/2554 of the European Parliament and of the Council of 14 December 2022 on digital operational resilience for the financial sector (DORA) · https://eur-lex.europa.eu/eli/reg/2022/2554/oj/eng · Parlamento Europeo y Consejo de la UE · 14-12-2022

Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence (Artificial Intelligence Act) · https://eur-lex.europa.eu/eli/reg/2024/1689/oj/eng · Parlamento Europeo y Consejo de la UE · 13-06-2024